

of King's Bench. His appointment took place on May 6, 1378; and he sat there as the only puisne judge for four years.

He was promoted to the office of chief justice on June 22, 1381, 5 Richard II., a week after the murder of John de Cavendish¹; and the first duty to which he was called was the punishment of the insurgents. Some of the worst were those who had risen in Hertfordshire, and forcibly compelled the Abbot of St. Alban's to grant them various immunities. To that town he accompanied the king; and the mode of trial he adopted was somewhat novel. He forced one jury of twelve to present the ringleaders, according to a list previously prepared; a second jury was next empanelled, who confirmed the finding of the first; and then the same course² was adopted with a third jury. No witnesses appear to have been examined; but every party charged was condemned on the personal knowledge of these thirty-six men.³ The executions here and in other counties are described as being most numerous; and Tresilian's cruelty as having had no parallel till the campaign of Judge Jefferies three centuries afterwards. Knighton, a contemporary chronicler, states that whoever was accused before him, whether guilty or innocent, was sure to be condemned; and other writers have extended the number of the sufferers to fifteen hundred.⁴

The excited state of the country might perhaps justify some stringent proceedings; but both he and others, engaged in putting down the rebellion, seem to have been conscious that they had greatly exceeded any warrantable licence; inasmuch as, in the parliament of the following November, an act of pardon and indemnity was deemed expedient for those who had acted "without due process of the law."⁴

¹ Dugdale's Chron. Series.

² Newcome's St. Alban's, 263.

³ Barrington on the Statutes, 262.; Lingard, iv. 182.; Rapin, iv. 25.

⁴ Stat. of the Realm, ii. 20.